

In J 4/03 the Legal Board decided that the desire of the appellant to be present himself at oral proceedings did not in itself amount to a serious ground for postponing the oral proceedings, in the absence of other special circumstances. The appeal turned essentially on how the law was to be applied to facts which were not in dispute, and so the presence or absence of a party who was duly represented in the proceedings should have no impact on the course of the proceedings or the final decision.

In T 231/13 the board held that the aim of Art. 15(2) RPBA 2007 and of the 2007 Notice was to fulfil the need for procedural economy while ensuring that the party could be duly represented during the oral proceedings. Attendance of one of the inventors was not relevant for the discussion of formal and substantive points in the oral proceedings, unless special issues arose, for example, in connection with a particular technical point. See also T 1212/04.

i) Flight cancellation along with impossibility of using other travel means

In T 174/16 the board held that it was unreasonable to consider a flight cancellation, along with the impossibility of using other travel means, not to constitute "serious reasons" within the meaning of the relevant provisions.

j) Postponement because of late receipt of board's communication

In T 569/11 the fact that the appellant became aware of the board's communication only shortly before the oral proceedings was not per se a reason that obliged the board to postpone the proceedings. Nevertheless, it was necessary to verify whether, in the light of the content of the communication, a postponement should be made in order to allow time for the appellant to react to the comments made by the board. This required an analysis of the points covered in the communication. In the case in hand, the board's communication did not include any new objection or any new evidence in comparison with the decision of the examining division. The facts of the case did not constitute an extraordinary circumstance (see T 1610/08) that would justify a postponement of the oral proceedings.

k) New evidence or requests

According to Art. 15(2)(c)(i) RPBA 2020, the filing of new requests, facts, objections, arguments or evidence, as a rule, do not justify a change of date.

In J 4/03 the Legal Board held that the desire of an applicant to file unspecified new evidence at an unspecified future date could not amount to a serious reason for postponing oral proceedings. Even in ex parte proceedings the appellant had to attempt to file any facts or evidence he wished to rely on before the set date of oral proceedings so that the board could exercise its discretion under Art. 114(2) EPC 1973 whether to admit the further evidence or not, on the basis of the relevant material.

In T 881/95 the request for postponement was refused because the evidence, which could only have been provided later, was not such as to affect the decision.

In T 427/05 the appellant filed one new main and 71 new auxiliary requests approximately six weeks before the oral proceedings. The respondent (opponent) submitted that none of these requests should be admitted into the proceedings; they were late-filed and too voluminous. Failing that, the oral proceedings should be postponed. The board decided there was no reason to postpone the oral proceedings in view of its decision to admit only those late-filed requests which related (albeit narrowed down in some cases) to the subject-matter which had been central to the discussions from the outset.

l) Proceedings before a national court

In T 392/97 the board ruled that the **subsequent** appointment of oral proceedings by a national patent court to take place on the same date as the previously appointed oral proceedings before the board was not in itself a sufficient reason for adjournment. See also T 932/16.

In T 228/09 the board considered, having regard to Art. 2.2 of the 2007 Notice, that unforeseen infringement proceedings could not generally be regarded as an acceptable ground for adjournment.

m) Postponement in order to avoid adverse decision of the board

In T 1053/06 the reasons given by the appellant (applicant) for requesting postponement of the oral proceedings clearly indicated that the appellant had chosen not to pursue the case further and would prefer its patent application to be lost for non-payment of the next renewal fee at a later date rather than by an adverse decision of the board at that time. Those reasons had to do solely with the convenience of the appellant, which, until it received the board's negative preliminary opinion, had preferred to pursue the appeal proceedings. The board refused the request for postponement.

n) Ongoing takeover negotiations between both parties

In T 1535/14 the board held that the reasons put forward, namely the existence of ongoing merger proceedings between both parties, did not prevent the parties attending the oral proceedings, but rather concerned their economic interests. Since both parties were appellants it appeared likely that oral proceedings would have to be held even in the event of the merger taking place. Postponement would be against procedural efficiency.

o) Expected childbirth by the partner of the professional representative

According to T 1101/13, that the partner of a professional representative was expected to give birth on a date close to the fixed oral proceedings could be accepted as a substantive reason for requesting a change of the date for oral proceedings. In the circumstances of the case, the board decided to maintain the date fixed for the oral proceedings.

p) COVID-19 pandemic

In T.437/17 the board stated that the mere general reference to the COVID- 19 pandemic and health risks with travel in Germany to and from the boards of appeal did not amount to serious reasons justifying the fixing of a new date for oral proceedings.

q) Representative unable to identify authorised person

In T.1150/13 the appellant's representative requested postponement of the oral proceedings, because he had been unable to identify the person at the appellant's company that was authorised to provide him with instructions on the case. He was making investigations with a view to identifying the authorised person, but anticipated that this would take some time. Thus, in order to give sufficient time to the instructing party to consider and respond to the summons to oral proceedings, the representative requested that the oral proceedings be rescheduled for a later date. In the case in hand the reason lay entirely in the sphere of the appellant and could in the board's view have been alleviated. It therefore did not constitute a serious reason for changing the date of the oral proceedings (Art. 15(2)(b) RPBA 2020).

r) Unavailability of an accompanying person – Article 15(2)(c)(iv) RPBA 2020

In T.777/17 the board stated that the reason provided by the respondent for requesting the postponement related to the impossibility of in-house counsel attending these oral proceedings; however, this reason is specifically listed in Art. 15(2)(c)(iv) RPBA 2020 as one of the reasons which, as a rule, do not justify a change to the date of the oral proceedings. The argument that the representative was relying on the support of the in-house counsel was not convincing as the representative must have been able to properly present the case without such support.

6.1.5 Postponement of the oral hearing at the instigation of the EPO

In T.679/14 the board found that it was unacceptable to repeatedly postpone oral proceedings without serious reasons, especially if it was done several times in the same examination proceedings after long delays had already occurred. The postponement of oral proceedings on five occasions at the instigation of the examining division without serious reasons constituted a procedural deficiency in the circumstances of the case.

6.2. Notice of two months in the summons

Under R. 115(1), second sentence, EPC (R. 71(1), second sentence, EPC 1973) the notice given in the summons to oral proceedings must be at least two months, unless the parties agree to a shorter period. Art. 15(1), first sentence, RPBA 2020 reads: "Without prejudice to R. 115(1) EPC, the Board shall, if oral proceedings are to take place, endeavour to give at least four months' notice of the summons".

In J.14/91 (OJ 1993, 479) the Legal Board ruled that a dispute about a third party's right to inspect the application dossier before publication had to be decided promptly (i.e. before

publication), otherwise Art. 128(2) EPC 1973 became null and void. If oral proceedings would facilitate a prompt decision, the summons under R. 71(1) EPC 1973 could give shorter notice – even without the other party's agreement – provided the parties were given enough time to prepare. The Legal Board referred to Art. 125 EPC 1973 and stated that it was a generally recognised principle of procedural law that notice could be curtailed in urgent cases. The degree of curtailment should be decided on a case-by-case basis.

In T. 111/95 the board stated that the examining division had no right simply to set a date for oral proceedings about two weeks after despatch of the summons. The board found that there was nothing on file to establish that the applicants' representative, at any time and unconditionally, accepted the date set. The onus of proving that an agreement for a shorter notice period was reached lay with the examining division. The board thus held that the summons was null and void, as were the actions following and resulting from it. See also T. 772/03.

In T. 601/06 and T. 869/06 the boards offered an alternative date within a period of about two months from the date of the request in view of the balance of interests of the parties and the public. The period of about two months arose from the fact that, except for when the parties consent, new summons had to be issued at least two months in advance of a hearing, so that dates within the two-month period from the date of the request could not be used for other cases.

According to the board in T. 2534/10, R. 115 EPC equally applied where oral proceedings were continued on a date other than that fixed in the summons and that a fresh summons for that date therefore had to be issued. See also T. 1674/12.

Where the board has sent more than one summons to oral proceedings, it is normally the summons which was sent first which is "the summons to oral proceedings" within the meaning of Art. 25(3) RPBA 2020 (T. 1511/15).

6.3. Final date for written submissions in the preparation for oral proceedings and late submission of new facts and evidence – Rule 116 EPC

6.3.1 General issues

R. 116(1) EPC (R. 71a(1) EPC 1973) stipulates, inter alia, that, when the EPO issues the summons to oral proceedings, a final date for making written submissions in preparation for the oral proceedings must be fixed. New facts and evidence submitted after this date need not be considered, unless admitted on the grounds that the subject of the proceedings has changed. The same is true for applicants or patentees invited under R. 116(2) EPC (R. 71a(2) EPC 1973) to submit documents which meet the requirements of the EPC.

As construed according to its **object and purpose**, R. 116 EPC (R. 71a EPC 1973) is intended to give the decision-making department and other procedural parties enough time to prepare thoroughly for the oral proceedings and so ensure that they are not faced with surprising new facts and do not take potentially inappropriate decisions in undue haste

(T.765/06; as to the reasons for the introduction of R.71a EPC see T.343/08). The purpose of R.116(1) EPC is to provide the EPO with a case management framework for the preparation of oral proceedings (T.798/05, T.66/14). In T.1067/08 the board held that the purpose of this provision was in particular to prevent parties from seeking unjustified procedural advantages by abusive tactics in disregard of procedural economy and to the disadvantage of other parties.

In T.1750/14 the board interpreted R.116(1) EPC in conjunction with R.132(2) EPC. From the wording of R.116(1) EPC it was not clear whether the non-applicability of R.132(2) EPC to R.116(1) EPC also precluded the possibility of extending specified periods, implying that the final date for making submissions in preparation for the oral proceedings set under R.116(1) EPC could not be changed. The board considered that a **change of the final date** should normally be allowable when the date for oral proceedings is postponed. At least in cases where a final date is specified relative to the date for oral proceedings (usually one month before the scheduled oral proceedings), it could even be argued that the final date was postponed automatically when the oral proceedings were postponed.

According to the established case law, R.116(1) EPC (former R.71a EPC 1973) should **not be construed as an invitation to submit further evidence** (see T.39/93, OJ 1997, 134; T.452/96; T.628/14; T.710/15). There is no general duty for an examining division to provide feedback on an applicant's reply to a summons to oral proceedings, in advance of such oral proceedings (T.343/08, T.462/06, R.2/13). In T.462/06 the board also stated that R.116 EPC did not mean that already in the communication all lines of arguments or a detailed reasoning for the decision should be set out. In T.601/06 the board held that R.71a(1) EPC 1973 did not impose an obligation on the EPO to give a preliminary opinion on the allowability of individual claims when issuing the summons.

In T.355/13 the board held that nothing in the expression "the **points to be discussed**" could lead to the conclusion that reasons for a preliminary opinion of an opposition division on the matter related to the points to be discussed should be given. The annex to the summons could legitimately only mention the points that needed to be discussed. The annex to the summons in an adversarial interpartes procedure such as opposition proceedings should not give rise to the impression that the case was decided without having heard the parties, and thus it should not comprise any definite opinion on the final conclusion of the case. However, an opposition division could express a preliminary opinion on the case.

R.116 EPC (R.71a EPC 1973), and Art.114(2) EPC on which it is based, refer to late-filed facts and evidence but not to new **arguments**, which can be made at any stage in the first-instance proceedings (T.131/01, OJ 2003,115; T.926/07; T.1553/07; T.2430/09; T.2238/15).

6.3.2 Examination and opposition proceedings

In T.755/96 (OJ 2000, 174) the board observed that R.71a EPC 1973 gave the EPO a discretionary power. The EPO's power to accept or refuse late-filed new facts or evidence